

5	Lopez vs. Trans Pak, Inc. 2024-01437506	1. Motion to Compel Further Responses to Form Interrogatories 2. Motion to Compel Further Responses to Form Interrogatories Continued to 09/14/2026
6	McPherson vs. Donald & Lynn Southard, LLC 2025-01494975	Demurrer to Complaint Continued to 08/24/2026
7	Menon vs. Memorial Care Saddleback Medical Center 2024-01379144	1. Motion for Summary Judgment and/or Adjudication Defendant Robert Day, M.D.'s ("Defendant") Motion for Summary Judgment is granted. Plaintiffs Parvathi Devi Geetha Devi and Shreejith Menon, individually, and as the guardian ad litem of Krishna Menon ("Minor," collectively, "Plaintiffs"), assert causes of action for medical negligence and negligent infliction of emotional distress against Defendant. With respect to the moving defendant, Plaintiffs allege Defendant was negligent in the "prenatal, labor and delivery and post-delivery care of" Minor and Devi; that Minor "suffered severe and irreversible brain damage and additional physical injuries that currently require daily dialysis treatments and a feeding tube on year post-birth"; and, Devi "suffered severe pain, suffering, and emotional distress." (Compl. at pp. 4-5, ¶ GN-1.) Under their fourth cause of action for negligent infliction of emotional distress, Devi and Menon allege they are "entitled to recover for this emotional distress" pursuant to Thing v. La Chusa (1989) 48 Cal. 3d 644." (Compl. at p. 7, ¶ GN-1.) Defendant moves for summary judgment as to every negligence claim against him on the grounds that: [1] he at all times complied with the applicable standard of care; [2] his conduct was not a substantial factor in causing any of the alleged damages; and, [3] a bystander theory of negligent infliction of emotional distress fails without the existence of any underlying, independently actionable tort. (ROA 83 [Not. of Mot. at p. 2].) Summary Judgment Standard "[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . ." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) "A prima facie

showing is one that is sufficient to support the position of the party in question.” (Id. at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (FPI Development v. Nakashima (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; 580 Folsom Associates v. Prometheus Development Co. (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (Doe v. Salesian Society (2008) 159 Cal.App.4th 474, 481; Bushling v. Fremont Med. Center (2004) 117 Cal.App.4th 493, 510.)

Medical Negligence Claims

“The elements of a cause of action for medical malpractice are: (1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage.” (San Antonio Regional Hospital v. Superior Court (2024) 102 Cal.App.5th 346, 350, citing Johnson v. Superior Court (2006) 143 Cal.App.4th 297, 305.) “The first element, standard of care, is the key issue in a malpractice action and can only be proved by expert testimony, unless the circumstances are such that the required conduct is within the layperson's common knowledge.” (Ibid., citing Lattimore v. Dickey (2015) 239 Cal.App.4th 959, 968.) “Proving the third element, causation, also requires “ ‘competent expert testimony.’ ” (Ibid., Miranda v. Bomel Construction Co., Inc. (2010) 187 Cal.App.4th 1326, 1336.)

“An expert declaration is admissible to support or defeat summary judgment if the expert’s testimony would be admissible at trial in accordance with Evidence Code section 720.” (Bozzi v. Nordstrom, Inc. (2010) 186 Cal.App.4th 755, 761.) Per Evidence Code section 720, “[a] person is qualified to testify as an expert if he has special

knowledge, skill, experience, training, or education sufficient to qualify him as an expert on the subject to which his testimony relates.” (Evid. Code, § 720, subd. (a).) The expert declaration must disclose the matters relied on in forming its opinion. (See *Kelley v. Trunk* (1998) 66 Cal.App.4th 519, 524.) The matter relied on must, itself, be properly authenticated and placed before the court. (*Garibay v. Hemmat* (2008) 161 Cal.App.4th 735, 743; accord *Shugart v. Regents of University of California* (2011) 199 Cal.App.4th 499, 505.)

Here, Defendant has provided a declaration from Roy Z. Mansano, M.D. (ROA 84.) Dr. Mansano attests he is a physician licensed to practice medicine in the State of California and is currently in private practice in the San Fernando Valley. He is board-certified in obstetrics and gynecology as well as maternal fetal medicine. (Mansano Decl. at ¶¶ 1-2.) In preparing his declaration he reviewed the materials that were submitted in connection with this motion, including Mother’s and Minor’s medical records. (Mansano Decl. at ¶ 5.)

Dr. Mansano opines, in relevant part, that: “Based upon my review of the above-delineated medical records, as well as my education, training, and experience, it is my opinion, to a reasonable degree of medical probability, that Dr. Day complied with the standard of care in his care and treatment of plaintiff throughout her pregnancy. He provided appropriate counseling, prenatal care, and timely monitoring, and there was no indication of placental abruption or other complications requiring earlier intervention.” (Mansano Decl. at ¶ 12.)

Dr. Mansano further states, “it is also my opinion that, to a reasonable degree of medical probability, Dr. Day did not cause or contribute to any delayed delivery or adverse outcome, including [Minor’s] NICU admission and subsequent diagnosis of mild hypoxic ischemic encephalopathy secondary to placental abruption because on November 28, 2022 upon examination there were no signs or symptoms of placental abruption or other anomalies requiring delivery.” (Mansano Decl. at ¶ 14.)

Plaintiffs did not submit any objections to this testimony. Based on the foregoing, the Court finds Defendant met his initial burden of showing that the care provided to Minor and Devi were, to a reasonable degree of medical probability, within the applicable standard of care in the community, and that no negligent act or omission by Defendant was a substantial factor in causing the alleged damages.

Negligent Infliction of Emotional Distress Claim

“Negligent infliction of emotional distress “ ‘is not an independent tort, but the tort of negligence,’ ” to which “ ‘traditional elements of duty, breach of duty, causation, and damages apply.’ ” (Downey v. City of Riverside (2024) 16 Cal.5th 539, 547, citation omitted.) In other words, a bystander’s claim for negligent infliction of emotional distress depends upon the existence of an act of negligence that caused injury to the victim. (Thing v. La Chusa (1989) 48 Cal.3d 644, 647 [“It is in that context that we consider the appropriate application of the concept of ‘duty’ in an area that has long divided this court— recognition of the right of persons, whose only injury is emotional distress, to recover damages when that distress is caused by knowledge of the injury to a third person caused by the defendant’s negligence”] [emphasis added].)

Because Defendant has met his initial burden on the medial negligence claims, Plaintiffs’ bystander theory of recovery under Thing v. La Chusa, which is based on witnessing a “negligent injury” to Minor, also fails absent a triable issue of fact on the negligence claim.

Request for Continuance

“If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just.” Alternatively, the motion “may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due. (Code Civ. Proc., § 437c, subd. (h).)

“A declaration in support of a request for continuance under section 437c, subdivision (h) must show: “(1) the facts to be obtained are essential to opposing the motion; (2) there is reason to believe such facts may exist; and (3) the reasons why additional time is needed to obtain these facts. (Cooksey v. Alexakis (2004) 123 Cal.App.4th 246, 254.) The party requesting a continuance does not need to show that the evidence does exist, but it must show that it may exist. Further, the supporting affidavit or declaration “must detail the specific facts that would show the existence of controverting evidence.” (Granadino v. Wells Fargo Bank, N.A. (2015) 236 Cal.App.4th 411, 420.) If this showing is made, then the continuance is “virtually mandated.” (Dee v. Vintage Petroleum, Inc. (2003) 106 Cal.App.4th 30, 34, citation omitted.) “Continuance of a summary judgment hearing is not mandatory, however, when no affidavit is submitted or when the submitted affidavit fails to make the necessary showing

		under section 437c, subdivision (h).” (Cooksey v. Alexakis (2004) 123 Cal.App.4th 246, 254.) Here, the Court finds Plaintiffs have not made the showing required under CCP section 437c(h), for their requested continuance of 120 days. Plaintiffs have not shown that the evidence necessary to defeat this motion may exist. In his declaration, Menon states: “We are not asking for this continuance because we are seeking to delay the resolution of this case. We are asking because we have been placed in an impossible position through no fault of our own. Our counsel has informed us that he cannot find an expert willing to support liability, but we believe the evidence tells a different story. We need time to find an attorney who can present that evidence properly. (ROA 153 [Menon Decl. at ¶ 13].) The Court notes this action was filed in February 2024 (i.e., more than two years ago). Defendant’s counsel attests that no written discovery has been served by Plaintiffs, nor have they noticed the depositions of any defendant or witnesses. (ROA 165 [Bunch Decl. at ¶ 4].) Plaintiffs’ counsel’s (recent) request to withdraw does not explain why opposing evidence could not have been obtained in the more than two years since this action was filed, or the months since this motion was filed. The Court notes that Plaintiffs submitted “supplemental declarations” on 6/5/26 (ROA 169), but the Court need not consider these tardy declaration because Plaintiffs have not shown good cause. Further, the supplemental declarations do not raise a triable issue of material fact. For the foregoing reasons, Defendant Day’s motion for summary judgment is granted; Plaintiffs’ request for a continuance is denied. Defendant is ordered to give notice of the ruling.
8	Mohan vs. USC Developers LLC 2026-01562032	Motion to Expunge Mechanics Lien The court will hear argument.
9	Niguel Summit Community Association vs. Pacific Island Village III Homeowners Association, Inc.	Demurrer to Complaint / Motion to Strike Complaint The Court sustains Defendant Monarch Summit I Homeowners Association’s Demurrer to the second cause of action for negligence per se in Plaintiff Niguel Summit Community Association’s Complaint. The remainder of the Demurrer is overruled. <u>Merits</u>